

## 24SMCV06087 24SMCV06087

County: los-angeles

Division: Civil Law and Motion

Department: I

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The matter is here for a final status conference before the trial currently set for September 4, 2026.

(The reason for the lag is that the court will be out on leave during the bulk of the interim.) The court has received the following FSC materials.

(1) Joint Short Statement of the Case.

It is kind of long, but the court will read it if the parties so desire. That said, the court will

inquire whether the parties would prefer to do mini-openings. (2) Joint Exhibit List. Plaintiff has 43 exhibits and defendant has 19. There are no stipulations as to authenticity or admissibility. This is not sufficient. (3) Joint Jury

Questionnaire. This needs to be

revised. It has things like "raise your

hand." The court understands this to be

a questionnaire for the jurors to fill out, not for the court to read. That said, the court is generally ok with the questionnaire in concept, although the parties need to look it over again as

the court has some issues with some of the questions (like 28). (4) Joint Verdict Form. This looks ok. (5) Joint Witness List. 12 witnesses are listed for a total of 52

hours. That seems long, but the court

recognizes that this is a document of preclusion, so it might be longer than the reality. (6) Joint Jury Instruction

List. These are the CACI instructions,

and some are contested. But it appears

that the CACI instructions that are contested mostly will depend on what the evidence shows, so it seems ok for now.

(7). Plaintiff's Proposed Special

Instructions. There are 4. (8) Defendant's Proposed Special

Instructions. There are 10.

Here is what remains to be done. (1) The parties need to meet and confer on the exhibit list. The parties ought to

stipulate as to authenticity as to every document where there is not a good faith question as to authenticity. The

parties ought to discuss stipulating to admissibility where the parties know that there are not going to be any real issues.

The court will expect an amended Joint Exhibit List with the stipulations no later than 2 weeks from today.

(2) The parties need to revise the Joint Jury Questionnaire. They should make it such that the jury can fill it out and it needs to read that way.

The parties also might want to consider shortening it. Again, the revised questions should be filed no later than 2 weeks from today. (3)

The parties ought to discuss their respective special instructions. Where there are dueling instructions, they should be submitted together. (4) The

court needs the parties' best estimate as to the real trial length (in hours) all in.

The court does not have any deposition designations. The court assumes that this is because no one intends to use any deposition excerpts other than for impeachment. The court does not have a statement of unusual issues. The court assumes this

is because there are none. The court

does not have any trial briefs, but they are optional in a jury trial. If the court's assumptions are right and the above tasks are accomplished, the case is READY FOR TRIAL. Trial will likely not begin, however, until September 8 and it is CONTINUED to that date at 10:30.

The court has 25 motions in limine, largely taken from form books. Here are the court's rulings.

Plaintiff's MILs.

1—Unopposed. The court therefore presumes that the defense does not so intend. 2—DENIED.

This is too vague to grant.

3—DENIED. This is also too vague

to grant. 4—DENIED. This is too vague to grant and it is not proper either. 5—DENIED because it is too

vague. However, the court agrees that as

a general proposition the continued use of the car does not mean that there is no recovery for plaintiff. The court will need to see context. 6—DENIED as written. The motion is to preclude evidence that a component repaired successfully on the first attempt does not count. But the court would think that if there is a problem that is repaired fully the first time, that actually does not give rise to Song-Beverly liability. However, the opposition seems to imply that the defense wants to argue that if it was repaired on the second attempt, then as a matter of law there is no liability. The court has not seen a case that so holds. 7—DENIED. Too vague to grant. 8—DENIED. In part because the court is not sure what plaintiff means. 9—DENIED. Too vague to grant without context. 10—DENIED. It will depend on the reasons for the evidence; it cannot be granted in a vacuum.

#### Defendant's MILs

1—DENIED. Again, defendant seems to argue that under Song-Beverly, if it is repaired the second time, that is sufficient, and the court does not see any case law so holding. 2—DENIED. This is too vague to grant without context. 3—DENIED. Need context. For example, if there is a problem that is relevant during the warranty period, the fact that the problem persists after the warranty period could be relevant. If the issue is that it is a problem that just was never covered by the warranty, that might be different. 4—DENIED without context. That said, hearsay will be excluded if the Evidence Code so provides, and the court will also enforce sections 350 and 352. To the extent plaintiff wants to introduce this for punitive damages, the court does not understand punitive damages to be at issue (only the statutory penalty). 5—DENIED. It depends on the statements and the context. In some cases, the dealer is defendant's agent. In other cases, the dealer might not be the agent but might say something that is admissible and relevant. In other cases, not so much. Without the specifics, the court cannot grant the motion. 6—DENIED. The court has no idea what this means. 7—DENIED. The dealer is the agent for some purposes. 8—DENY.

It depends on the opinion. A lay person might well be able to give an opinion on impairment. (For example, even the court would know that if the car overheats whenever it is on the freeway, its value will be impaired, not to mention safety.) 9—GRANT. To the extent plaintiff intends to testify about the emotional distress that the car caused, that would seem to be beyond the pale. But that is not to say that general statements will always be excluded.

So, for example, if the car stalled out on the freeway in heavy traffic in the number 2 lane and plaintiff testified that plaintiff was scared, that is likely to come in. But if plaintiff suggests to the jury that plaintiff should be compensated for the emotional distress (for example, testimony that plaintiff was too depressed over the vehicle to work), that would stay out.

10—Same as 9. 11—DENIED. But there will need to be a foundation laid. 12—DENIED.

Need context. Some might be able to so testify, others not. 13—DENIED. Too vague.

14—UNSURE. If plaintiff truly refused to comply with expert discovery rules in a material way, the court would grant the motion. But the court cannot tell if such is the case.

15—DENIED. On the one hand, anything that is truly irrelevant will be excluded. But it is far from clear that all bulletins and recall notices are irrelevant.

The court appends hereto its trial instructions.

## Trial Procedures

On the first day of trial, the parties are to provide the court with the following trial notebooks.

Volume 1. (a) The

Operative Complaint; (b) The Operative Answer; (c) The Final Witness List; (d)

The Final Exhibit List (with stipulations); (e) The List of Jury Instructions

with a notation as to whether they are agreed upon or proposed but opposed; (f)

The Special Verdict Form (red-lined if necessary); (g) The Short Statement of

the Case. Volume 2. The jury instructions in full text. There should be no brackets. Where there are dueling instructions, they should be placed back to back with plaintiff's proposal first. If a red-line is useful, a red-line should

also be provided. Volume 3. The exhibits.

The parties need to provide 3 sets to the court. One for the judge, one for the Judicial Assistant, and one for the witness.

The court has the ability to use an ELMO to publish documents or other materials. The court can also publish documents on the screens from either computer. There is a switch that will toggle back and forth. That said, the court makes no guarantees on this. The court has the ability to limit the screens to counsel and court, such that a document can be shown that way but not seen by the jury, which is useful while laying a foundation. No document will be published to the jury until it has been admitted into evidence.

Trial days. The trial day begins at 10:30 and goes until noon. We come back from lunch at 1:30 and go to 4:30 (or a little before). There is one break in the afternoon. The trial will go forward on Mondays-Thursdays, but not on Fridays.

The court will inquire as to the date by which the parties can guarantee the case will be in the jury's hands—that is, the date that the jury will begin deliberations. The court will use that date to determine hardships. The parties are advised to be sure that they are not too optimistic. Jurors are never upset if the case runs short but are very upset if it runs long. If necessary, the court will “chess clock” the parties based on this estimate. Time used by the court (such as instructing the jury) will be equally divided in terms of the clock. When a witness is being examined, the party examining the witness will have that time counted against it. In other words, if plaintiff is being cross examined, the cross examination time is counted against the defense. When a party runs out of time, the court might deem that party to have concluded their presentation of the evidence, including waiver of the right to examine or cross examine additional witnesses, and potentially the right to close. Obviously, the court knows that trials can throw curve balls, and where something unforeseen happens, the court is willing to adjust.

If plaintiff calls a witness adversely, the defense will have a choice. The defense can opt to

undertake a full examination of the witness at that time, even if it is beyond the scope of the direct. If the defense so chooses, the court will not expect the witness to be called during the defendants' case in chief (other than for something unexpected), and the court will not expect a motion for non-suit that is based on any part of the cross examination that is beyond the scope of the direct. Alternatively, the defense can opt for a shorter cross. Under that option, the court would expect a very short cross examination but would understand that the witness will give a full examination during defendants' case in chief. The goal is to allow for an efficient trial and not have testimony given twice.

The court expects all parties to have witnesses at the ready. If a witness concludes her or his testimony and the party putting on its case has no witnesses immediately available, the court may deem that party to have rested (within reason). The court expects the party putting on its case to provide the opposing side with the good faith witness line up for the next two court days at the end of each day. This gives the other side the chance to prepare intelligently. The court recognizes that sometimes things change, but the court will view a change with skepticism.

The court does not know if there will be a court reporter. If so, well and good. If not, then the parties are ORDERED to meet and confer with lead counsel immediately after the end of each court day to arrive at a stipulated settled statement. The meeting will last until midnight or until a settled statement is agreed upon. The settled statement will be lodged with the court at 10:00 am the following court day. If the parties cannot agree, then no later than 2:00 am the parties will exchange their drafts. At 10:00 am that morning (that is, the morning after the conference) the parties will submit a red-line of the defendant's proposed statement against plaintiff's proposed statements. On even numbered days (referring to the calendar date of the trial, not the day of submission), plaintiff will be responsible for lodging the document. On odd-numbered days, defendants will be responsible for lodging the document. In the alternative, the parties can WAIVE THE RIGHT OF APPEAL. The court does not advise the waiver. The reason for this process is that if there is no reporter's transcript, then there will need to be a settled statement on appeal. That will often be many months after the trial, and if the parties cannot agree, then the court needs to settle the statement. By the time that happens, the

parties will not have great memories as to what happened, and the court's memory will fade as well. This needs to be done while memories are very fresh. The court's advice is to hire a court reporter.

Jury selection. When

the venire first comes into court, the court will give a welcome speech and there will be introductions. The venire will then be sworn. If the parties have elected to make mini-openings, they will make them then. Plaintiff can have up to four minutes and defendant can have up to four minutes.

The mini-openings will be oral only.

After that, the court might have some additional comments. After that, the court will inquire as to hardship. Generally, right before lunch

those who believe they will have a hardship will fill out a short form to that effect and, if possible, a copy will be given to counsel. Over lunch, counsel are to meet and confer to determine if there are any prospective jurors where they agree to stipulate the venireperson off or agree that there is no hardship. While the hardship decision is the court's alone, the court will take into account the parties' views. After lunch, the court will interview jurors claiming hardship, and that will likely take up the rest of the day. If a second panel is needed, the court will start the process over again the following day with a new venire, and will continue to do so day to day until there are sufficient time-qualified jurors. The next morning, we will begin voir dire. The court uses a six-pack

method. 18 venirepersons will be called

and seated in order. The court will ask

a few background questions and then turn it over to plaintiff. Plaintiff may inquire as to any of the

18. When plaintiff is done, the defense

can question. The voir dire counts

against the "chess clock." The court

reserves the right to ask follow-up questions.

When the defense has finished voir dire, the court will hold a

conference on challenges for cause outside the jury's presence. Defendants will then make all of their cause challenges, one by one, and the court will rule. When defendants have passed for cause, plaintiff will make the cause challenges.

After that, the court will thank and excuse any venirepersons who have been successfully challenged for cause. Once

a juror has been passed for cause, the challenge for cause is passed forever barring new information. After that, peremptory challenges will begin.

Plaintiff will make the first challenge, followed by the defendants,

back and forth. If a peremptory challenge is made and the other side wants to make a Wheeler challenge, it must be made before the juror is excused or it will be deemed waived. That is because if the challenge is successful, the court can rectify the situation by re-seating the juror (in which case the party making the challenge can make another challenge). But once the venireperson is excused, a mistrial must be declared. Peremptory challenges can be made only against the prospective jurors in the box, meaning sitting in seats 1-12. Someone in seats 13-18 cannot be the subject of a peremptory challenge unless they move into the box. If a party passes, the pass does not count as a challenge, and the party that passed may later make a peremptory challenge against a juror as to whom there has been a pass. (But, of course, if both sides pass, then we have a jury). When there are only 11 jurors seated, the court will replenish the group by calling 7 new prospective jurors from the gallery. The voir dire process will then begin again, but only for the new jurors called. Voir dire cannot be re-started as to a juror who has already been questioned. Cause challenges can only be made as to the 7 new jurors, but peremptory challenges can still be made as to any of those in the box. The court believes that for voir dire purposes, there are only two parties, so each will get 6 peremptory challenges to the jury. Once a jury has been selected, the court will proceed to alternates. At present, the court anticipates two alternates, with each side getting two peremptory challenges to the alternates. The court will likely have a "panel" of 6 prospective alternates to be questioned. A prospective alternate who has already been questioned will not be questioned again, and an alternate who has been passed for cause is no longer subject to a cause challenge. Peremptory challenges can only be made to the first two people—that is, those who are actually seated in an alternate seat.

The parties should meet and confer as to two potential stipulations: (1) an agreement for fewer peremptory challenges either for the jury or for the alternates; and (2) whether a jury of less than 12 can render a verdict. As to both, the court will need to know the details of any stipulation (how many challenges, how many votes does it take to reach a verdict). If a stipulation is reached, the court should be informed. If not, the parties should report nothing more than that there is no stipulation.

The court does NOT want to know how each person voted.

On opening statements, the court reminds the parties that it



is an opening "statement," not an opening "argument." The court will allow non-argumentative Power Point presentations. The parties may show exhibits during this presentation if, and only if, there is no good faith objection to admissibility. If there is a good faith objection, the parties may describe it during opening but not show it.